Blacktown City Council child care centre guide 2016

Planning Policy | Blacktown City Council

Blacktown City Council

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This guideline provides advice on the design considerations for development of child care facilities.

It is a supplement to the development controls contained in *Blacktown Local Environmental Plan 2015* and *Blacktown Development Control Plan 2015*.

1. Selecting a suitable site

1.1. Location

Child care facilities are encouraged on sites that are close to:

(a) existing education, open space or community facilities

(b) public transport services

(c) local shops, medical centres or major employment areas

Areas that have high levels of visual surveillance for security are considered to be suitable for child care facilities

It is preferred that child care facilities are not located on sites:

(a) adjacent to a classified road, roundabout, T-intersection, traffic light intersection, dangerous bend, shopping centre driveway, or pedestrian laneway

(b) on roads that end in a cul-de-sac or dead-end

(c) in close proximity to approved or existing sex premises

(d) that are battle-axe allotments or where the slope of the land will impact on the provision of level outdoor play areas or impede access for people with a disability

(e) where cut/fill or retaining walls will be required for building platforms or drainage

(f) where there may be risk to children, visitors or staff including land that is flood liable, affected by local overland flooding, or bushfire prone

(g) affected by noise, odour, contamination, or other potentially offensive substances

(h) in close proximity to a railway corridor, existing or approved service station, transmission lines, or any other potentially hazardous land uses

Development Applications for child care on sites in close proximity to non-residential land uses must show how the design incorporates suitable measures to minimise health and safety risks created by any rural, commercial, industrial or potentially hazardous activities on adjoining land.

2. Allocation of child care places

A maximum number of 40 places for children is preferred, with a minimum of 4 places for children under 2 years of age.

If at any time the number of children or the age range will change in a child care facility an application to amend the terms of any consent must be lodged with Council.

3. Building design

3.1. General considerations

The design and layout of child care centres must create a stimulating, attractive and engaging environment, with a range of flexible spaces for children to learn and play. We recommend that materials and colours that are attractive and inviting to children are incorporated into the building design.

The built form must be compatible with the established streetscape in terms of height, bulk, scale and external finishes. It is recommended that free-standing child care centres in residential area are designed to look like a dwelling house when viewed from the street.

The building design must incorporate eaves for shade, weather protection and climate control.

Stairways must be fitted with child proof barriers that will prevent any child entering the stairway without direct adult supervision

4. Internal design

The internal layout of a child care centre must:

- encourage proper maintenance
- reduce damage
- increase operational efficiency
- improve the safety of all users.

Consideration should be given to items such as:

- locking devices
- location of power points
- relationship between rooms
- location and type of storerooms
- the elimination of unnecessary projections
- details that will improve the usability and safety of internal spaces.

The architect or designer certifying the proposal must address the requirements below.

4.1. Playrooms

Playrooms must provide safe and highly functional play areas for children.

The design of playrooms should incorporate:

(a) flexibility to reorganise play spaces for different activities using alcoves or relocatable shelving

(b) space for supervised private areas to allow small groups of children to carry out their own activities

(c) suitable flooring and soft areas to accommodate child needs and behaviours

(d) suitable areas for children to eat and drink

(e) easy access for each child, which does not impinge upon exits

(f) clear safety glass panelling on doors, windows and observation frames in interior walls to allow visual supervision to all parts of the building used by children including outdoor space

(g) windows and doors that enable children to see outdoors from play areas (for example by having some window sills at 500mm above the floor)

(h) smooth and level transition areas between indoor and outdoor play spaces, and toilet facilities. This will prevent trip points and unnecessary steps

(i) direct access from all indoor play spaces to toilet facilities and outdoor play areas.

(j) clear access between functional areas such as kitchens and laundries that does not cross play space.

(k) clerestory windows (where possible) to:
- allow warm air to escape in summer
- provide passive solar heating in winter.

4.2. Sleep rooms

Child care centres with places for children under 2 years old must provide a suitable sleep room, separate from the playroom.

Sleep rooms must:

(a) contain an adequate number of cots, beds, stretchers or sleeping mats (together with waterproof covers) or other culturally appropriate forms of bedding for all children who sleep while on the premises

(b) be well ventilated

(c) not contain more than 8 cots

(d) separate cots a minimum of 0.8 m from points of access and pathways

(e) be accessible to staff at all times

(f) have unrestricted viewing windows to ensure supervision of children at all times.

4.3. Craft preparation facilities

Craft preparation facilities must:

(a) be in each playroom

(b) be away from food preparation areas and nappy change areas

(c) include a sink, a bench top and a lockable storage cupboard that is only for craft materials.

4.4. Food preparation areas

All food preparation areas must be safe and appropriate for the preparation and cooking of food, washing up and cleaning. These areas must be inaccessible to children.

The design of these areas must comply with the:

- *Food Act 2003* and regulations
- *Australian Standard AS 4674-2004 Design, Construction and Fit-out of Food Premises*.

4.5. Bottle preparation area

Child care centres with places for children under 3 years old must provide suitable facilities for bottle preparation and sterilisation.

This area must:

(a) be in a separate enclosed area that is inaccessible to children

(b) allow for supervision of play areas by staff

(c) be separate from the nappy changing area

(d) have refrigeration facilities for infant formulae, milk and food

(e) have a dedicated cupboard for detergents and other potentially harmful substances. The cupboard must be inaccessible to children and equipped with child proof locks.

4.6. Toilet and washing facilities

All child care centres must have toilet, hand washing and bathing facilities that are safe and appropriate to the ages of the children.

It is strongly recommended that toilet facilities are provided at a rate of 1 toilet per 8 children, irrespective of age. Under the *Building Code of Australia,* child care centres (Class 9b buildings) must have toilet facilities at a minimum rate of:

- 1 junior toilet (or 1 adult toilet with a firm step and a junior seat) per 15 children
- 1 child size hand basin (or 1 adult size hand basin with a firm step) per 15 children.

These areas must have:

(a) storage for cleaning products and equipment. This storage must be inaccessible to children and equipped with child proof locks.

(b) direct access from sleeping rooms or a nappy change area

(c) clear and direct access from indoor and outdoor play areas

(d) washable, non-slip flooring graded to a floor waste

(e) child size hand basins or water troughs, mounted between 570mm and 600mm above floor height

(f) at least 1 tap accessible and suitable for children with a disability. General design and construction standards for fixtures and fittings for disabled persons are in *Australian Standard AS1428*, particularly *AS1428.3 - Requirements for Children and Adolescents With Physical Disabilities*)

(g) at least 1 soap dispenser for each wash basin, We recommend liquid soap dispensers over the basin.

(h) hand drying facilities. We recommend paper towels with a bin.

(i) separate staff toilet facilities for each sex at a minimum rate of:

- 1 toilet and 1 wash basin for 40 males
- 1 toilet and 1 wash basin for 20 females.

4.7. Hot water facilities

All hot water facilities must be safe, and appropriate to the ages of the children at the centre.

(a) Hot water from any outlet accessible to children (e.g. bath, basin or shower) must be regulated to keep it below the temperature at which a child can be scalded or at a temperature as prescribed in the regulations, i.e. 43.5°C.

(b) New centres must (where possible) provide hot water using solar panels or other energy efficient technology.

4.8. Nappy change facilities

Child care centres with places for children under 2 years old must provide nappy changing facilities.

These facilities must:

(a) prevent unsupervised access by children.

(b) be separate from the bottle and food preparation areas

(c) allow unobstructed supervision to adjoining areas of the centre

(d) include a dedicated cupboard for detergents and other potentially harmful substances. The cupboard must be inaccessible to children and equipped with child proof locks.

(e) have an impervious washable surface, and a washable mat for changing nappies at a minimum rate of 1 per 10 children under 3 years old

(f) have a hand washing basin with elbow/wrist operated taps for staff

(g) include a sluice/contaminated waste disposal unit and sanitary facilities for the storage of soiled nappies pending laundering or disposal

(h) include storage facilities for clean nappies

(i) include facilities for rinsing soiled clothing and nappies, separate to the hand washing area.

4.9. Laundry facilities

Child care centres must have laundry arrangements and safe sanitary facilities, either on the premises or through another facility, service or arrangement.

Laundry facilities must:

(a) be at least 10 sqm in size

(b) have all cupboards fitted with childproof locks

(c) have washable, non-slip flooring graded to a floor waste

(d) include a separate sluicing facility/contaminated waste disposal unit for nappies

(e) have storage for soiled clothes, linen and nappies pending laundering or disposal.

(f) include at least 1 laundry tub with hot and cold water.

(g) include a safely installed washing machine.

(h) not store flammable liquids. The vapour may ignite from a spark by an electrical appliance, or by the pilot lamp of a gas water heater.

Food preparation areas must include:

(a) tight fitting doors or shutters to inhibit the initial spread of flame, and reduce the dispersion of smoke

(b) a smoke and heat resistant half clear-glassed door (or other suitable smoke and heat resistant barrier) that prevents entry by children and provides visual supervision to all play areas.

(c) floors, walls and ceilings that are smooth, free of cracks and crevices, and easily cleaned.

(d) floor and wall intersections covered by benches, wash hand basins and similar fixtures.

(e) machinery mounted either on wheels or on plinths 150mm in height

(f) shelving and fittings made from suitable durable materials such as stainless steel and glass

(g) a hand washing basin for personal hygiene. This is to be supplied with dispensed soap and disposable hand towels or an electric hand dryer.

(h) a separate sink for cleaning equipment and utensils

  i. The sink depth must be adequate to immerse the largest piece of washable equipment.

  ii. The hot water supplied to the sink must have a minimum temperature of 77°C.

(i) a stove or microwave, a refrigerator, a hot and cold water supply, and suitable disposal facilities.

(j) a dedicated cupboard for detergents and other potentially harmful substances. The cupboard is to be inaccessible to children and equipped with child proof locks.

Food preparation areas must not:

(k) open directly to toilet and washing facilities

(l) be near sleeping areas to reduce any noise impacts

5. External design

The external layout of a centre must allow children to engage in healthy developmental play under the unobstructed supervision by staff.

It is important that the design of outdoor areas provides:

(a) shade and undercover areas for sun protection and usable play space during wet weather.

(b) child safe fencing on all sides to create a safe environment for children and to minimise adverse impacts on the amenity of surrounding properties

(c) outdoor storage that does not encroach on the play area or impede supervision

(d) direct access to the main indoor play areas and to toilet facilities

(e) a large sandpit that provides 0.5 sqm per child. The sandpit must be a minimum of 12 sqm in size and have a minimum depth of 0.6 m

(f) safe play spaces for children that are

  (i) at ground level

  (ii) away from the main entrance of the child care centre, car parking areas, vehicle circulation areas and habitable rooms of surrounding dwellings (i.e. living room and bedroom windows)

The architect or designer certifying the proposal must address the specific requirements below.

5.1. Minimum requirements for outdoor play space

Outdoor play areas must:

(a) include a minimum of 7 sqm of play space per child

(b) be located north or north-east of the building

(c) allow at least 50% of play space to be shaded from summer sun:

  (i) Shade must comply with the NSW Cancer Council's *Shade for Child Care Services guideline*

  (ii) Shading may be by vegetation, structures or play equipment.

(d) have unobstructed staff supervision at all times. This may require careful selection of screening vegetation, and design solutions that provide unobstructed visual supervision from inside the building to the outdoor areas.

(e) relate directly to the main indoor play areas and have direct access to the toilets.

5.2. Vegetation and landscaping

All centres must have landscaping that is suitable for children and will preserve the privacy and amenity of adjoining residential properties. Landscaping must be established prior to operation of the child care centre commencing.

As a guide, the landscape design should have consideration to:

- how the design complements the building and the streetscape, and provide screening for car parking and outdoor play space
- incorporating learning and educational opportunities, such as flower beds and vegetable gardens
- providing outdoor spaces used by children with shade in summer and solar access in winter
- providing suitable screen planting in the side and rear setbacks must include suitable screen planting to protect visual privacy and reduce light and noise impacts on adjoining properties.
- incorporating vegetation that is non-allergenic and sensitive to water restrictions
- providing minimum soil depth of 06m for outdoor space and landscaped areas above basement parking areas.

Design

Landscaping for child care centres in residential areas must:

(a) include at least 2 m of the front setback and 1 m of the side and rear setbacks

(b) complement the existing character of the local area.

(c) preserve the privacy and amenity of adjoining residences

(d) include noise abatement measures such as mounding and fencing (See 2.5 Fencing and gates of this guideline.)

(e) be around the boundaries of the play area to act as a buffer and to enhance the aesthetic quality of the space.

(f) retain existing features of the site, including trees and vegetation

(g) be functional, educational and visually pleasing.

Plant species

Plant species must be suitable to the site, easily maintained and interesting to children. When assessing plant species, consider:

(a) protection from prevailing winds

(b) screening for privacy

(c) shelter and enclosure

(d) shade in outdoor play areas

(e) reduction of reflection from bright surfaces

(f) emphasis of pedestrian and vehicular routes

(g) visibility of play areas

(h) plants that may be toxic, allergenic, prickly or otherwise unsafe are prohibited

Landscape plans

All applications must include a landscape plan prepared by a landscape architect or designer.

The landscape plan must show:

(a) existing vegetation, plant species and trees that are to be retained or removed

(b) noise abatement measures

(c) fencing and gates

(d) shade structures

(e) structures for play and storage

(f) design solutions that provide unobstructed supervision of children by staff

Additional documentation such as a flora and fauna report or arborist's report may be required. This must be discussed with Council before lodging an application.

Note: development consent is required under *Blacktown Local Environmental Plan 2015* for tree removal or any lopping/topping of trees.

5.3. Outdoor play areas

Outdoor play areas must include:

(a) a variety of surfaces that provide an engaging environment for children, such as grass, sand, hard paving and mounding.

  (i) All surface materials must have suitable heat absorption qualities and texture to create comfortable and safe play areas in all conditions. (For example surfaces such as bitumen are unsuitable due to surface temperatures exceeding 45°C in summer.)

  (ii) All surfaces must be of an acceptable standard to suit the needs of children and comply with the requirements of Australian and New Zealand Standard *AS/NZS 4422:1996 Playground Surfacing – Specifications*, *requirements and test method*.

(b) an open flat area for running, active play and mobile equipment

(c) flat grassed play areas

(d) quiet play areas

(e) suitable play equipment with impact absorbent material beneath

(f) flat soft areas for babies

(g) paved surfaces suitable for safe use of wheeled toys

(h) secure fencing (fencing provision should be discussed with Council at DA stage)

(i) a large sandpit, which must:

  (i) be a minimum size of 12 sqm (or 0.5 sqm per child) with a minimum depth of 0.6 m.

  (ii) have a cover to prevent use by animals and protect it from debris

  (iii) be suitably drained

  (iv) be suitably shaded

  (v) have suitable space for supervision

5.4. Play equipment

(a) Outdoor equipment must comply with Australian Standards, including *AS1924 Playground Equipment for Parks, Schools and Domestic Use* and *AS2155 Playgrounds - Guide to siting and to installation and maintenance of equipment*.

(b) Play equipment such as cubby houses, trampolines and slides must not overlook neighbours' properties or impact on the privacy of adjoining residential properties.

(c) Shade structures must not:

  (i) be in elevated positions close to boundary fences

  (ii) cause overshadowing or visually impact adjoining residential properties.

(d) Play equipment must not constitute a hazard. Height, rough edges, stability and quality of equipment must be taken into consideration.

5.5. Fencing and gates

Outdoor play areas and parking areas must have child safe fencing and gates. This creates a safe environment for children and to minimises impacts on the surrounding area.

Fencing and gates must:

(a) be 1.8 m high for outdoor play areas and parking areas

(b) be designed based on the acoustic report

(c) be made from noise abating materials as recommended in the acoustic report. Materials such as lapped and capped timber, brick or masonry are recommended. We discourage use of colorbond.

(d) not allow any person or child to climb over or crawl under them

(e) not be close to play equipment if the equipment will reduce the effective height of the fence or enable the fence to climbed over.

(f) have child proof self-locking mechanisms

(g) have landscaping that enhances the aesthetic quality of the space and acts as a buffer.

5.6. Storage facilities

Outdoor storerooms must be provided for the safekeeping outdoor equipment.

Storage facilities must:

(a) comply with the Education and Care Services National Regulation

(b) be located so that the movement and storage of equipment does not adversely affect the amenity of surrounding residential properties .

(c) have appropriate access and entry points; preferably from an inward facing direction to the site

(d) be setback a minimum of 3 m from property boundaries. Council may consider proposals for storage facilities to be setback in line with the main building if it is demonstrated to Council's satisfaction that the storage facilities will not adversely impact on the amenity of adjoining residential properties.

6. Amenity and Privacy

6.1. Ventilation and lighting

Child care centres must be designed to provide maximum natural light and proper ventilation, with natural airflow for sufficient cooling and heating. All natural ventilation must comply with the Building Code of Australia

All heating and cooling units must be inaccessible to children. Space heating equipment must not include:

- open fires
- combustible liquids
- exposed flame heaters
- exposed floor electric heaters.

External lighting must be provided for the safety of users of the site.

6.2. Privacy

Child care centres must not overlook the living areas or private open space areas of adjoining residential properties. To help preserve privacy of adjoining residential properties the side and rear setbacks should be planted with a 1 m wide landscape buffer.

The lighting design must ensure that external lights do not cause nuisance to adjoining properties.

The acoustic report must address how the design minimises potential noise transmission within play areas and on adjoining residential properties. Matters to be considered may include:

- ceiling form, soft surfaces or acoustic wall panelling in play rooms
- locating driveways, car parking, pedestrian walkways and ramps away from playrooms and sleeping rooms within the centre, and the habitable rooms and private open space of surrounding dwellings
- locating air conditioning systems and plant equipment so that they do not cause 'offensive noise.'

7. Safety provisions

The information below is a guide only.

Applicants must ensure that the building complies with the *Building Code of Australia* and all relevant legislation, regulations and Australian Standards.

Fire safety within the building must satisfy the requirements of the *Building Code of Australia* for a Class 9 building. All fire safety details must be submitted with the Construction Certificate application.

7.1. Exits

All child care centres must have clearly defined exits and paths of travel for emergencies.

Specific requirements for exit systems are in the *Building Code of Australia*, however the following must also be considered:

(a) The design of the exit system must allow for the:

  (i) limitations of the all users (children and adults) of the childcare centre

  (ii) tendency for people to exit the building via the door by which they entered

(b) At least 2 exits must be available and remain clear of obstructions at all times

(c) The door latch must not require the use of a key from the inside of the building

(d) The exit door must open by a single-handed action on a single device located between 0.9m and 1.2m from the floor

(e) Padlocks or the like are prohibited on exit doors

(f) Doors that swing against the direction of exit must have a device that can hold them completely open

(g) Any sliding doors must be easily operated and the direction of operation must be shown on the door (e.g. by an arrow). It is strongly recommended that sliding door tracks at floor level are recessed to prevent tripping.

7.2. Early warning systems

All child care centres must have early warning systems in place in the event of a fire or emergency, including:

(a) smoke detectors that comply with the appropriate Australian Standards. It is recommended that smoke detectors that are hard wired into the mains power system, with back-up battery to ensure uninterrupted operation

(b) a regular program of checking and maintenance of smoke detectors and batteries

(c) an evacuation or response plan. This must be implemented when the alarm sounds, with specified staff members assuming pre-determined roles and ensuring a safe and orderly evacuation. The evacuation plan must be supported by staff training in how to act in an emergency, and regular evacuation drills.

Further information may be obtained from *Australian Standard AS3745 Emergency Control Organisations and Procedures for Buildings*, or by contacting the NSW Fire Brigades. Emergency lighting and warning system specifics are in the *Building Code of Australia.*

7.3. Exit signs and emergency lights

Emergency lighting and exit signs must be installed to show paths of travel to exit points for the safe and quick evacuation from the building in an emergency. They must comply with the *Building Code of Australia* based on area and users.

7.4. Fire-fighting and protection

Fire protection measures primarily involve equipment or installations to extinguish small fires or prevent the escalation of a fire.

Fire-fighting measures must comply with the *Building Code of Australia* and equipment must be tested every 6 months under Australian Standard 2444 and Australian Standard 1851.1 for Level 1 service.

It is strongly recommended that the location and type of fire-fighting facilities be discussed with Council before installation. As a general guide however, all centres must have:

(a) appropriately located fire detectors

(b) a fire blanket kept adjacent to cooking facilities

(c) appropriately located fire extinguishers that are:

  (i) installed on wall brackets near the exit door of the room they protect or outside the door if the room contains hazardous items or activities.

  (ii) suitable for the hazard they are required to combat. (For example water extinguishers or hose reels are unsuitable for electrical or burning liquid fires. Also carbon dioxide extinguishers are of limited use on fires of large amounts of paper or similar products.)

  (iii) regularly checked and serviced. If the seals are broken on an extinguisher or the extinguisher has been used it must be serviced immediately to ensure it is available for use in any future emergency.

(d) a regular program of maintenance so that fire equipment is kept in proper working condition

(e) furniture, floor coverings, furnishings and decorating materials that comply with specification C1.10 of the *Building Code of Australia*.

7.5. First aid

All centres must have:

(a) a suitable and fully stocked first-aid kit that is

  (i) approved by the WorkCover Authority in line with the relevant Acts and regulations, i.e. *Occupational Health and Safety Act 2000.*

  (ii) kept in a locked cupboard, the key to which must be immediately adjacent to the cupboard and readily accessible to staff.

(b) a resuscitation flow chart that is displayed in a prominent position.